



Department for Transport

XXX

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Your Ref: 190884-MRH-XXX-ZZZ-LET-
EEN-000001

20 AUGUST 2026

Dear XXX,

Transport and Works Act 1992 (“the 1992 Act”)

Transport and Works (Applications and Objections Procedure) (England and Wales) Rules 2006 (as amended) (“the Applications Rules”)

Proposed Transport and Works Act Order for The Network Rail Midlands Rail Hub Portfolio: Birmingham Moor Street Station to Bordesley Enhancements

1. Thank you for your email of 8 July 2026, the attached letter requesting an Environmental Impact Assessment (“EIA”) Screening Decision (“the Screening Request Letter”), and the attached Environment Report. You have requested a screening decision under rule 7(4) of the Applications Rules to determine the requirement for an EIA regarding your proposed application for a Transport and Works Act Order and associated deemed planning permission for the proposed enhancements to the railway corridor between Birmingham Moor Street Station and Bordesley (“the proposed development”).
2. Based on the available information, including the Screening Request Letter, the Environment Report, and responses from consultees, the Secretary of State considers that the proposals described in your Screening Request Letter are a project falling within Annex II, 10(c) to the Directive 2011/92/EU of the European Parliament and of the Council as amended by Directive 2014/52/EU.
3. It is noted by the Secretary of State that a number of the consultees have made reference to the Town and Country Planning (Environmental Impact Assessment) Regulations 2017 while conducting their assessments. However, for the purposes of this application the Secretary of State has relied on rule 7 of the Application Rules.

4. Having regard to the characteristics and location of the project and the type and characteristics of potential impacts, the Secretary of State considers that this project will give rise to likely significant environmental effects. In accordance with rule 7(12) of the Applications Rules, the Secretary of State's screening decision is that an **EIA is required** for the proposed works as set out in the letter dated 8 July 2026 describing the enhancements to the railway corridor between Birmingham Moor Street Station and Bordesley. This letter is the notification of the screening decision required under rule 7(13) of the Application Rules.
5. In reaching this screening decision, the Secretary of State, under rule 7(8), has consulted the bodies listed below from 13 July to 10 August 2026 and has considered their responses:
 - Natural England;
 - Environment Agency;
 - Historic England;
 - Birmingham City Council; and
 - Canal and River Trust.
6. Responses were received from all consultees. Copies of the consultation responses are included with this letter, the contents of which should be noted.
7. Birmingham City Council responded on 24 July 2026 that they are in agreement with the Applicant that the proposed development requires an EIA. They identified several environmental topics which have the potential to have significant effects as a result of the proposed development. They also highlighted that due to nearby projects, such as HS2 and the Metro extension, that there is the potential for high cumulative impacts.
8. The Canal and River Trust responded on 3 August 2026 and agreed with the Applicant that the proposed development has the potential for significant environmental effects and therefore that an EIA is necessary. They noted that the scheme has the potential to impact the Grand Union Canal and associated infrastructure, including Bower Street Feeder, which provides an important water supply to the wider canal network. The Grand Union Canal is a Site of Local Importance for Nature Conservation, and they recommend that aquatic surveys and assessment work is undertaken.
9. In their response of 10 August 2026, Historic England concluded that there would be the potential for significant effects on cultural heritage to designated and non-designated heritage assets as a result of the proposed development and therefore agreed with the Applicant that an EIA should be undertaken. They noted that there is the potential for effects to the Warwick Bar Conservation Area, the Digbeth, Deritend and Bordesley Conservation Area, various Listed Buildings, and the Birmingham former moated manorial site scheduled monument, as well as various locally listed or non-designated heritage assets, including buried archaeology.
10. It is noted that Natural England responded on 21 July 2026 that there are no potential likely significant effects on statutorily designated nature conservation sites or landscapes and therefore they concluded an Environmental Assessment is not required. Natural England included a set of assumptions used in reaching this

conclusion and acknowledged that there are other components of the proposed development which will need to be considered to determine whether an EIA is necessary. The Secretary of State acknowledges this response and notes the assumptions made by Natural England.

11. Natural England added that the proposal area drains to the river Cole and river Tame and that the water quality and quantity may be affected by the proposed development, the significance of which should be accounted for before determining whether an EIA is necessary. Natural England advised that '*no physical barriers should be added to the catchment and opportunities to restore the natural course of watercourses should be investigated and implemented where possible*'. Natural England also mentioned that air pollution should be considered as part of the proposed development and whether an EIA is necessary. Additionally, Natural England noted that the proposed development may have the potential to impact priority species and/or local landscape character and that, although this is beyond their scope, it should be taken into consideration to determine if an EIA is necessary.
12. In reaching her screening decision, the Secretary of State has had regard to information provided to her and the selection criteria set out in Annex III to the Directive in accordance with rule 7(11) of the Application Rules and has taken into consideration the proposed mitigation measures under rule 7(12). As required by rule 7(14) her screening decision has referred to such of the selection criteria set out in Annex III of Directive 2011/92/EU as the Secretary of State has determined are relevant to the proposed scheme. The selection criteria to which the Secretary of State has had regard are:
 - 1 (a) to (f);
 - 2 (a) to (c); and,
 - 3 (a) to (e).
13. Taking into consideration the information supplied with the screening request and the consultation responses, and having regard to the characteristics and location of the proposed development and the type and characteristics of its potential impacts, the Secretary of State considers that the proposed development is likely to give rise to significant environmental effects, including in relation to cultural heritage, cumulative impacts, the water environment and biodiversity. Accordingly, the Secretary of State's screening decision under rule 7(12) of the Applications Rules is that an **EIA is required** in relation to the proposed development.

Distribution

14. Copies of this letter are being sent to those organisations which were consulted on the request for a screening decision, as listed in paragraph 4.
15. In accordance with rule 7(15) a copy of this decision will be placed on our website at:

<https://www.gov.uk/government/publications/midlands-rail-hub-portfolio-transport-and-works-act-order>

Yours sincerely,

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